# Introduction to Causation

An introductory guide to negligence in England and Wales. How to connect a breach of duty to the particular injury or loss for which compensation is claimed.

## 1. Carelessness and harm need a connection

A person owes a duty of care, fails to meet the required standard, and someone suffers harm. Those facts do not yet show that the failure caused that harm. **Causation** supplies the connection between the defendant's breach and the particular damage claimed.

Negligence is a civil wrong, or **tort**. A useful starting framework is: a duty of care owed to the claimant; a breach of that duty; legally recognised damage caused by the breach. Other rules may limit responsibility or the amount recoverable. It is a framework for analysis, not a complete mechanical formula. [1, 3]

> **Three different questions:** Did the defendant owe a duty? Did the defendant fall below the required standard? Did that failure cause the damage for which this claimant seeks compensation? Proving the first two does not answer the third.

## 2. Two invented examples

**A:** A waiter carelessly drops a heavy tray on Hana's foot, fracturing a toe. Assume the tray caused the fracture. There is a causal connection between the careless act and that injury.
**B:** The waiter drops the tray in an empty room. Hana independently fractures a toe while running outside. The same careless act exists, but it does not explain her fracture.

In B, saying “the waiter was careless” is true but insufficient. The question is not whether the defendant deserves criticism in general. It is whether this breach explains this injury. An unrelated injury does not become the defendant's responsibility merely because both occurred on the same day.

## 3. Specify the damage before testing causation

Identify what the claimant says was caused: a fractured toe, an additional treatment cost, or a particular loss of earnings. Avoid asking only whether the defendant “caused something bad”. Different losses can require separate analysis.

**Claimant:** person bringing the case. **Defendant:** person or body sued. **Damage:** the injury or loss. **Damages:** monetary compensation. **Breach:** failure to comply with the relevant duty.

# Two stages of the inquiry

## 4. Causation in fact: what difference did the breach make?

**Causation in fact** asks whether the breach actually made the relevant difference to the damage. The ordinary starting point is the **but-for test**: would the claimant have suffered the same damage if the defendant had complied with the duty? If not, the ordinary test is satisfied. [2]

Invented example: a mechanic negligently fails to repair defective brakes. A collision follows. If working brakes would have stopped the car before impact, the omission is causally relevant. If an unavoidable rockfall would have produced the same damage despite working brakes, the conclusion differs.

> **The comparison:** Identify the actual breach. Replace it with the conduct the duty required. Compare the resulting position with what happened. Support the imagined alternative with evidence; do not remove every other difficulty from the claimant's life.

## 5. Legal causation: should a later event break the chain?

Even where a factual connection exists, the law must consider its legal significance. A **novus actus interveniens** is a new intervening act which may break the chain of legal responsibility for later harm. A later event is not automatically such a break. Its character and its relationship to the original wrong must be examined. [1]

Invented example: a cyclist is injured and receives medical assistance. The mere arrival of a doctor does not automatically erase the driver's responsibility. A question about a later, separate injury requires closer analysis of what happened and why; timing alone does not decide it.

## 6. Remoteness: is this kind of damage too remote?

**Remoteness** is another legal limit on recoverable loss. In negligence it generally concerns reasonable foreseeability of the kind of damage. It is not simply physical distance or elapsed time. A factual consequence may still fall outside the recoverable loss. [1]

Keep the labels separate: factual causation, an intervening event, and remoteness ask different questions. An introductory discussion may group them under “causation”, but that does not make them the same legal test.

Causation is also important in contract and criminal law. The applicable rules, protected interests and standards of proof differ. Do not transfer every negligence rule into those fields unchanged.

# A case and a map of the topic

### Barnett v Chelsea and Kensington Hospital Management Committee [1969] 1 QB 428

A sick man was sent home from hospital without proper examination. He later died of arsenic poisoning. The evidence showed that proper treatment would not have prevented his death. [2]

> **Who won, and why?** The hospital management committee won. The failure was negligent, but it was not proved to have caused the death. The same death would have occurred with proper care. This demonstrates why breach and causation must be considered separately. [2]

## 7. Start with the ordinary rule

Ask what the defendant should have done and what would then have happened. In the ordinary negligence claim, the claimant proves factual causation on the **balance of probabilities**: more likely than not. Neither criticism of the conduct nor sympathy for the claimant replaces that inquiry. [2]

The defendant need not be the only cause. For example, an existing physical weakness and a collision may both matter. A pre-existing condition does not, by itself, settle whether the collision caused an additional injury.

## 8. Recognise the more difficult questions

**Material contribution:** several factors may work together to produce an injury; the question may concern an actual, more than negligible contribution. **Loss of a chance:** the claimant may frame the loss as an opportunity for a better outcome. The legal treatment depends on the category of claim; neither label guarantees recovery.

**The Fairchild exception:** a special approach developed for asbestos-related mesothelioma where scientific uncertainty prevented identification of the responsible exposure. Mesothelioma is a cancer of a lining, commonly the pleura surrounding the lungs; it is not simply another name for ordinary lung cancer. This is not a general rule that increased risk always proves causation. [3]

## 9. Build a clear answer

State the breach, identify the damage, explain the causal comparison and the evidence, then consider any relevant legal limits. If a special doctrine is needed, explain why its conditions are met. Avoid jumping straight from “the defendant made a mistake” to “the defendant must pay”.

Barnett is included as a worked illustration. The separate guides on the but-for test, loss of a chance and material contribution develop the topics introduced here.

# Check your understanding

**1. A duty, a breach and an injury are proved. Is causation automatically established?**
Answer: No. The breach must be connected to the particular injury or loss claimed.

**2. A shop fails to clean a spill, but a customer falls elsewhere because of an unrelated loose shoelace. Does the spill itself explain the fall?**
Answer: Not on those assumed facts. The breach and the injury need a causal connection.

**3. What does the ordinary but-for test ask?**
Answer: Whether the same damage would have occurred if the defendant had complied with the duty.

**4. Who won Barnett, and why?**
Answer: The hospital management committee. Proper care would not have prevented the death, so the negligent failure was not its factual cause.

**5. Does every later event break the chain of causation?**
Answer: No. A later event must be examined under the relevant legal rules; mere sequence is insufficient.

**6. Does remoteness simply mean that damage occurred far away?**
Answer: No. It is a legal limit on recoverable damage, generally concerned with foreseeability of its kind in negligence.

**7. Does Fairchild make every increase in medical risk sufficient?**
Answer: No. It is an exceptional approach with specific conditions, developed in asbestos-related mesothelioma litigation.

## Primary sources

The practice examples are invented. Sources checked 20 October 2026. This guide concerns England and Wales.

[1] *Armstead v Royal & Sun Alliance Insurance Co Ltd* [2024] UKSC 6, paras 23, 56 and 62: limits on recovery, remoteness and legal causation. Read judgment

[2] *Davies v Bridgend County Borough Council* [2024] UKSC 15, paras 56-58 and 80: the ordinary test and the judicial account of *Barnett*. Read judgment

[3] *Fairchild v Glenhaven Funeral Services Ltd* [2002] UKHL 22, paras 2-8 and 33-34: negligence elements and the exceptional asbestos cases. Read judgment